ScotLIS

Title Information: ANG36283

Search summary

Date/Time of search	06-02-2026 17:50:57
Payment reference number	WV6J-RDMW-9S2F-HX9K

Section A

Property

ANG36283

Date of first registration	01-04-2005
Date title sheet updated to	27-10-2025
Hectarage Code	13.3
Real Right	OWNERSHIP
Map Reference	NT4030 SW
Title Number	ANG36283
Cadastral Unit	ANG36283
Sasine Search	inter alia 65531, 33977, 12098
Property address	DUNDEE WATERFRONT, DUNDEE SOUTH MARKETGAIT, DUNDEE YEAMAN SHORE, DUNDEE UNION STREET, DUNDEE WHITEHALL CRESCENT, DUNDEE NETHERGATE, DUNDEE EARL GREY PLACE, DUNDEE RIVERSIDE DRIVE, DUNDEE CRICHTON STREET, DUNDEE SHORE TERRACE, DUNDEE CASTLE STREET, DUNDEE DOCK STREET, DUNDEE COMMERCIAL STREET, DUNDEE GELLATLY STREET, DUNDEE CANDLE LANE, DUNDEE TRADES LANE, DUNDEE
Description	Subjects cadastral unit ANG36283 at DUNDEE WATERFRONT, DUNDEE tinted pink and yellow on the cadastral map being 13.30 hectares in measurement on the Ordnance Map, which subjects include inter alia parts of the sola of SOUTH MARKETGAIT, DUNDEE, YEAMAN SHORE, DUNDEE, UNION STREET, DUNDEE, WHITEHALL CRESCENT, DUNDEE, NETHERGATE, DUNDEE, EARL GREY PLACE, DUNDEE, RIVERSIDE DRIVE, DUNDEE, CRICHTON STREET, DUNDEE, SHORE TERRACE, DUNDEE, CASTLE STREET, DUNDEE, DOCK STREET, DUNDEE, COMMERCIAL STREET, DUNDEE, GELLATLY STREET, DUNDEE, CANDLE LANE, DUNDEE and TRADES LANE, DUNDEE ; Together with the rights specified in the Disposition in Entry 4 of the Burdens Section and also in the Statutory Conveyance in Entry 7 of the Burdens Section.
Notes	1. The parts edged and numbered in yellow on the cadastral map have been leased - for particulars see Schedule below.

Schedule of Leases

Entry No	No on Plan	Plot No	Subjects	Tenant	Date of Recording or Registration	Term	Rent
1	1			Scottish Hydro Electric Power Distribution plc	Land Register 08-04-2013 under lease title sheet ANG61345	99 years from 11 March 2013	£1 per annum
2	2		cuboid space above the ground	Scottish Hydro Electric Power Distribution plc	Land Register 27-06-2018 Lease title sheet ANG80072.	60 years commencing on and including 19 Apr. 2017	£1 per annum
3	3			Design Dundee Limited	Land Register 14-08-2018 Lease title sheet ANG80392.	from 2 Jul. 2018 until 1 Jul. 2117	£1 per annum
4	4			Scottish Hydro Electric Power Distribution plc	Land Register 09-11-2018 Lease title sheet ANG81130.	99 years commencing on and including 29 Oct. 2018 to 28 Oct. 2117	£1 per annum
5	5			The Scottish Ministers	Land Register 15-12-2020 Lease title sheet ANG86387.	from 1 Sep. 2020 until 1 Sep. 2040	£1,316,290 per annum (subject to review)

Entry No	No on Plan	Plot No	Subjects	Tenant	Date of Recording or Registration	Term	Rent
6	6			Scottish Hydro Electric Power Distribution Plc	Land Register 03-02-2025 under Lease title sheet ANG96041.	Period of 99 years commencing on and including 15 Jan. 2025	£1 per annum (if asked only)
7	7			Dundee Industrial Heritage Limited	Land Register 27-10-2025 under Lease title sheet ANG97621	From 15 Nov. 1995 until 8 Oct. 2086	£5 per annum

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Section B

ANG36283

Proprietorship

DUNDEE CITY COUNCIL the Local Authority for the area of the City of Dundee constituted under the Local Government etc. (Scotland) Act 1994 and having their principal offices at City Chambers, 21 City Square, Dundee, DD1 3BA.

Entry number	1
Date of registration	01-04-2005 (as to part)
Date of Entry	
Consideration	Not Applicable
Date of registration	23-04-2007 (as to further part)
Date of Entry	27-03-2007
Consideration	£36,500 in respect of part of the subjects in this Title
Date of registration	30-07-2007 (as to further part)
Date of Entry	31-12-1972
Consideration	£35,000 in respect of a further part of the subjects in this Title
Date of registration	01-04-2008 (as to further part)
Date of Entry	31-03-2008
Consideration	£33,500 in respect of a further part of the subjects in this Title
Date of registration	26-06-2014 (as to further part)
Date of Entry	20-06-2014
Consideration	£1 in respect of a further part of the subjects in this Title
Date of registration	12-07-2017 (as to further part)
Date of Entry	20-06-2017
Consideration	£210 in respect of a further part of the subjects in this Title
Date of registration	06-04-2018 (as to remainder)
Date of Entry	22-12-2017
Consideration	£1 in respect of the remainder of the subjects in this Title

Notes

1. The Date of Entry field in entry 1 is intentionally blank.

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Section C

Securities

ANG36283

Entry number	1
Specification	Standard Security in respect of undertaking thereinmentioned by said DUNDEE CITY COUNCIL to CREATIVE SCOTLAND a public body established by the Public Services Reform (Scotland) Act 2010 and having its principal place of business at The Lighthouse, Mitchell Lane, Glasgow G1 3NU over that part of the subjects in this Title tinted pink on the secondary layer of the cadastral map of which an extract is included as supplementary data to the title sheet and other subjects.
Date of registration	26-07-2017

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Section D

Burdens

ANG36283

Number of Burdens: 12

Burden 1

Blench Disposition by The Board of Trade to Provost Magistrates and Town Council of Royal Burgh of Dundee for the purposes authorised by the Dundee Seawall, Esplanade and Street Act 1868, recorded P.R.S. (Forfar) 21 Oct. 1868, of an area of land (formerly being the Alveus of the River Tay) contains the following conditions and reservations that have not been extinguished in respect of the subjects tinted pink on the cadastral map, which forms part of said area of land:

(First) That all rights competent to all bodies or persons, public or private, in, to or over said Alveus are hereby specially reserved; And all Defences and Answers competent to said Provost Magistrates and Town Council against any such claims of right are also reserved

(Second) That the said Alveus shall be used for the sole purposes of the Esplanade and Street, the Station and other purposes of the Caledonian and North British Railway Companies authorised by said Act; And that the Sea-wall shall be constructed and upheld by the said Provost Magistrates and Town Council and their successors in office in all time coming, and

(Third) That the plans for the said Sea-wall and other works to be constructed shall be first submitted to and approved in the ordinary way by the Board of Trade before any of the works are commenced.

Note: The conditions in the said Blench Disposition have been varied in terms of the Minute of Waiver in Entry 5.

Burden 2

Feu Contract, recorded Dundee Burgh Register 12 May 1877, containing Feu Disposition by The Trustees for the Harbour of Dundee in favour of the North British Railway Company (hereinafter called the Company) and their successors and assignees, of a real and heritable perpetual easement servitude interest right and privilege (hereinafter called subjects), in over and affecting the soil of those parts of Dock Street &c. in which the Railways and works have been or are in the course of being constructed in tunnel (hatched blue on the cadastral map), and that for the purpose of making constructing completing and maintaining the said tunnel But declaring that in so far as they have not already done so the Company shall at their own expense after execution of the tunnel form restore make good and complete the streets and the quay and quay walls and other works of the Trustees insofar as interfered with by the Company's operations and reserving to the Trustees and

the public and all others interested the use of the streets and quayage over the said tunnel in the same way and manner and for the like purposes as other parts of their streets and quays adjoining:

But declaring that the said Company and those acting in their employment shall so far as the Trustees are concerned have at all times full and free access to and from and on and over the surface of the said tunnel works for the purpose of repairing restoring and otherwise maintaining the said works and declaring that during the execution and till the completion of the said works of maintenance the Company shall provide and maintain such ways accesses and other conveniences for the accommodation of the Trade of the Harbour and Docks as the engineer appointed by the Trustees for the purpose may judge to be necessary and order to be done and the Company shall make good to the Trustees all damage that may be done to their quay walls or other works by or through the maintenance of the tunnel or otherwise.

Burden 3

Disposition by British Railways Board to Corporation of City of Dundee and their successors and assignees, recorded G.R.S. (Angus) 21 Feb. 1967, 3.163 acres of ground of which that part of the subjects in this title edged and lettered A in blue on the cadastral map forms part, contains the following burdens:

(First) under burden of any servitudes and rights of wayleave granted by us or our authors for laying and maintaining sewers, drains, pipes, cables, telegraph and telephone poles, wires and stays that may be laid in, through or across the subjects hereby disponed; declaring that the said disponees and their foresaids shall satisfy themselves as to the existence of any sewers, drains, pipes, cables, telegraph and telephone poles, wires and shall free and relieve us and our foresaids of all claims and liability of every kind in respect of any future interference with the said sewers and others due to their operations on the said subjects;

(Second) Before carrying out any operations on the subjects hereby disponed, the said disponees and their foresaids shall submit to our Estate Surveyor, 90 West Nile Street, Glasgow, for approval all plans, sections and detailed drawings showing inter alia the water supply and the drainage arrangements connected therewith and shall give effect to any reasonable suggestion made by the Surveyor in regard to such plans for the protection of our remaining property;

(Third) The said disponees and their foresaids shall free and relieve us and our authors of all obligations incumbent on us to uphold and maintain any bridges, bridge abutments, fences, drains, ditches, culverts, walls, roadways or other works within or connected with the subjects hereby disponed.

Burden 4

Disposition by British Railways Board to Corporation of city of Dundee and their successors and assignees, recorded G.R.S. (Angus) 12 Jul. 1967, of 0.34 acre of ground being that part of the subjects in this title edged and lettered B in blue on the cadastral map, contains the following rights and burdens:

Together with a servitude right over the area tinted red on said cadastral map for the formation of a road bridge, declaring that the bridge shall be so constructed that it is entirely supported independently of our retaining walls, which walls are expressly excluded from the subjects hereby disponed; and

(First) There is reserved to us and our successors (primo) all servitudes and rights of wayleave for laying and maintaining sewers, drains, pipes, cables, telegraph and telephone poles, wires and stays that may be laid in, through or across the subjects hereby disponed, and the said disponees shall satisfy themselves as to the existence of any sewers, drains, pipes, cables, telegraph and telephone poles, wires and stays and they and their foresaids shall be bound to relieve us and our successors of all claims and liability of every kind in respect of any future interference with the same due to their operations on the said subjects, and (secundo) a servitude right to use the area of ground adjoining West Dock Street forming part of the subjects hereby disponed in connection with the existing Railway Tunnel, and the said disponees and their foresaids are prohibited from carrying on any building operations or other works within the said area or in any area adjoining it which might affect the use of the tunnel by us or our foresaids without the prior consent of us or our successors;

(Second) the said disponees and their foresaids shall, before carrying out or commencing any operations on the subjects hereby disponed, submit to our Estate Surveyor plans, sections and detailed drawings for approval showing inter alia the water supply and drainage arrangements and shall give effect to any reasonable suggestion made by him in regard to the same for the protection of our remaining property, declaring that such approval shall not be unreasonably withheld;

(Third) the said disponees and their foresaids shall fence off the said area of land from the remaining land belonging to us with an unclimbable fence or wall and shall thereafter uphold and maintain the said fence at sight and to the satisfaction of and free of expense to us and our successors.

Note 1: The said existing railway tunnel is hatched brown on the cadastral map so far as within the subjects disponed.

Note 2: West Dock Street bounded the subjects disponed on the east.

Burden 5

Minute of Waiver by Crown Estate Commissioners, recorded G.R.S. (Angus) 3 Apr. 1985, modifies the Blench Disposition in Entry 1, as follows:

The Commissioners waive all right competent to Her Majesty or Her Successors or the Commissioners to object to the use of the land conveyed by said Blench Disposition for development of a commercial, residential, recreational or open space nature; And the Commissioners hereby declare that the Disposition shall remain in full force and effect except in so far as modified by the foregoing Waiver.

Burden 6

Disposition by Scottish Enterprise to Scottish Hydro-Electric plc and their successors and assignees, recorded G.R.S. (Angus) 12 Jan. 1994, of 25 square metres of ground tinted yellow on the cadastral map, contains the following right that burdens the subjects in this Title, viz.

A servitude right of entry onto the adjoining ground belonging to us for all necessary purposes of construction and subsequent maintenance of the electricity substation to be erected upon the subjects hereby disponed.

Burden 7

Statutory Conveyance by Scottish Enterprise to Dundee City Council and their successors and assignees, recorded G.R.S. (Angus) 7 Apr. 1999, of 2.03 hectares of ground edged and lettered D in blue on the cadastral map, includes the following rights:

(One) a servitude right of wayleave, pipetrack and tolerance for all cables, drains, pipes, wires, pumps and others leading from the subjects hereby disponed to public facilities and all necessary rights of access thereto for the purpose of repair, maintenance and renewal thereof, (Two) servitude rights over the adjoining subjects belonging to us necessary for the servicing of the Visitor Centre in particular and the subjects hereby disponed in general and (Three) a servitude right of access over subjects immediately adjoining the area edged brown on said cadastral map on the west and north for the purpose of vehicular and pedestrian access for the construction and maintenance repair and when necessary the reconstruction of any bus lay-by section of footpath and landscaping works to be situated on the said subjects edged brown.

Note: As at 7 Apr. 1999 Scottish Enterprise were proprietors of Riverside Drive west of the subjects hereby disponed.

Burden 8

Feu Disposition by Port of Dundee Limited to Apex Hotels Limited and to its successors and assignees, registered 4 Sep. 2001, of subjects lying to west of West Victoria Dock Road, Dundee (hereinafter called "the Feu"), contains the following right:

A non-exclusive right with others to exercise the existing heritable and irredeemable unrestricted servitude right of access and egress to and from the Feu at all times over the areas edged mauve on the cadastral map shown only in so far as they affect the subjects in this Title for pedestrian and vehicular traffic.

Burden 9

The part hatched yellow on the cadastral map is subject to a Public Right of Way.

Burden 10

Deed of Servitude containing Disposition by Tay Road Bridge Joint Board ("the Burdened Owner") to Dundee City Council and their successors and assignees ("the Benefited Owner"), registered 18 Mar. 2010, of the following servitude rights &c.

1. DEFINITIONS AND INTERPRETATIONS

1.1 Definitions

In this Deed:-

"Benefited Property" means ALL and WHOLE the subjects known as Dundee Waterfront registered under ANG36283;

"Burdened Property" means ALL and WHOLE those three areas of ground lying to the west of South Victoria Dock Road, Dundee extending to 773.74 square metres, 1500.06 square metres and 994.01 square metres, which three areas of ground form part and portion of ALL and WHOLE (First) 21.3 acres of ground situated at the southeast side of Dock Street, Dundee and being the subjects more particularly described in, conveyed by and delineated and coloured pink on the plan annexed and signed as relative to the Statutory Conveyance by the Trustees of the Harbour of Dundee in favour of Tay Road Bridge Joint Board recorded GRS (Angus) 6 February 1973 and (Second) those three areas of ground situated at the Central Waterfront and registered under ANG45988;

"Schedule" means the schedule annexed to this Deed of Servitude;

"Servitude Conditions" means the conditions under which the Servitude Right is to be exercised set out in Part 2 of the Schedule; and

"Servitude Right" means the servitude right set out in Part 1 of the Schedule.

1.2 Interpretation

Save to the extent that the context or the express provisions of this Deed otherwise requires, in this Deed:-

1.2.1 words importing any gender include all other genders;

1.2.2 words importing the singular number only include the plural number and vice versa;

1.2.3 where at any one time there are two or more persons included in the expression "Benefited Owner" or "Burdened Owner" obligations contained in this Deed which are expressed to be made by the party denoted by the expression in question are binding jointly and severally on them and respective executors and representatives whomsoever without necessity of discussing them in their order;

1.2.4 words importing individuals include legal persons and vice versa;

1.2.5 references to this Deed or to any other document are to be construed as reference to this eyed or to that other document as modified, amended, varied, supplemented, assigned, novated or replaced from time to time;

1.2.6 any reference to a Clause, Schedule or Part of the Schedule is to the relevant Clause, Schedule or Part of the Schedule of or to this Deed;

1.2.7 any phrase introduced by the words "including", "include", "in particular" or any similar expression is to be construed as illustrative only and is not to be construed as limiting the generality of any preceding words; and

1.2.8 any rights reserved to the Benefited Owner are exerciseable by the tenants, agents, employees, workmen and others authorised by them from time to time.

1.3 Headings

The headings in this Deed are included for convenience only and are to be ignored in construing this Deed.

1.4 Schedule

The schedule forms part of this Deed.

This is the Schedule referred to in the foregoing Deed of Servitude by Tay Road Bridge Joint Board in favour of Dundee City Council.

Part1

The Servitude Right

The following servitude right is imposed on the Burdened Property in favour of the Benefited Property:-

A servitude right of access and egress at all times and for all purposes for pedestrians and vehicles (including heavy vehicles) over and across the Burdened Property.

Part 2

The Servitude Conditions

The Servitude Right created by this Deed is subject to the following Servitude Conditions:-

1. The owner for the time being of the Benefited Property will:-

1.1 make good on demand all damage caused to the Burdened Property by reason of the exercise of the Servitude Right by the owner of the for the time being of the Benefited Property or their tenants, agents, employees, workmen and others authorised by them from time to time, to the reasonable satisfaction of the owner for the time being of the Burdened Property;

1.2 procure that the Servitude Right is exercised so as to cause the minimum disturbance nuisance or annoyance reasonably practicable to the for the time being of the Burdened Property and their tenants or occupiers, and all other adjoining or neighbouring proprietors, tenants or occupiers;

1.3 indemnify the owner for the time being of the Burdened Property in respect of all claims, demands, expenses, liabilities, actions or others arising in consequence of the exercise of the Servitude Rights by the owner for the time being of the Benefited Property; and

1.4 at all times the roads formed on and over the Burdened Property, in good repair and condition to the reasonable satisfaction of the owner for the time being of the Burdened Property until such time as the said roads are taken over and adopted for maintenance by the local authority in terms of the Roads (Scotland) Act 1984.

Burden 11

The rights of the tenants under the Leases specified in the Schedule of Leases in the Property Section are burdens on the subjects in this Title.

Burden 12

Explanatory Note:

The descriptions of the burdened and benefited properties in any deed registered in terms of sections 4 and 75 of the Title Conditions (Scotland) Act 2003 in this Title Sheet are correct as at the stated date of registration of such deed.

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